

Commercial Alignment Memo v0.1

> PRE-NEGOTIATION STRUCTURE DRAFT。Final volume、timeline、budget、shortlisted suppliers、offers 與 authority 均為 TBD WITH CLIENT。Demo positions 不可對外使用。

Decision requested

G8 核准 negotiation mandate：final requirement range、priority / walk-away issues、trade authority、participants、approval route、supplier sequence 與 record protocol。若任何 material boundary 未核准，supplier discussion 只能 clarify，不能承諾。

Final requirement assumptions

對齊並版本化：reporting / site boundary、residual gap、existing procurement、volume / profile、start / COD tolerance、tenor、technology / claim eligibility、certificate timing、wheeling / meter、budget metric、currency / tax、credit / guarantee、implementation lead time。每項記 source / date / status；禁止默認沿用過期 scenario。

Term hierarchy

Position	Meaning	Meeting rule
Must-have	缺少即不符合 approved need / policy / risk boundary	不得交換；若 challenged 則 pause / escalate
Target	支持 value / execution 的偏好結果	可用 package trade 取得
Tradeable	有明確對價與 authority 才可讓步	記錄 give / get / value / expiry
Unacceptable	超出 risk / budget / policy / authority	不承諾；提出 alternative 或退出

分級本身須由 client approver 核准；Optimum 提出 commercial judgement，不替 client 接受風險。

Priority commercial issues

volume / firmness / profile；COD / longstop / delay remedy；tenor / ramp / flex / renewal / exit；price components / index / settlement；wheeling / loss / site cooperation；T-REC ownership / issuance / replacement；curtailment / shortfall；credit / guarantee；CP；change / force majeure；default / termination；implementation / data / BAU。

Negotiation objectives

每項 objective 用五欄表達：desired outcome、business rationale、supplier interest hypothesis、fallback / alternative、authorized trade。不能用「best terms」等模糊語句；要能在會後判斷是否前進。

Alignment meeting agenda

1. confirm decision and facts that changed ; 2. approve assumptions / validity ; 3. review top issues and red lines ; 4. agree package trades ; 5. assign speaking / note / escalation roles ; 6. approve next supplier interaction ; 7. record dissent / conditions 。

Preliminary judgement

HYPOTHESIS：先鎖定少量高價值 issues 與跨 term trade packages，可避免逐條討價導致整體 risk allocation 惡化；但 actual mandate 完全取決於 client approvals 與 counsel input。

Handoff

3.2 將 top issues 映射至 clauses / legal questions ; 3.3 使用同一 term IDs 與 authority ; 3.4 只比較經驗證的 remaining differences ; 3.5 把 agreed terms 轉成 final documents / CP / implementation responsibilities 。